ANNOTATED AGENDA
SPECIAL MEETING OF THE
BERKELEY CITY COUNCIL

In accordance with the authority in me vested, I do hereby call the Berkeley City Council in special session as follows:

Friday, June 14, 2024
2:00 PM

SCHOOL DISTRICT BOARD ROOM - 1231 ADDISON STREET, BERKELEY, CA 94702

TELECONFERENCE LOCATION - 1404 LE ROY AVE, BERKELEY, CA 94708

TELECONFERENCE LOCATION - 1619 EDITH STREET, BERKELEY, CA 94703

JESSE ARREGUIN, MAYOR

Councilmembers:

DISTRICT 1 – RASHI KESARWANI
DISTRICT 2 – TERRY TAPLIN
DISTRICT 3 – BEN BARTLETT
DISTRICT 4 – VACANT
DISTRICT 5 – SOPHIE HAHN
DISTRICT 6 – SUSAN WENGRAF
DISTRICT 7 – CECILIA LUNAPARRA
DISTRICT 8 – MARK HUMBERT

This meeting will be conducted in a hybrid model with both in-person attendance and virtual participation. If you are feeling sick, please do not attend the meeting in person.

Live captioned broadcasts of Council Meetings are available on Cable B-TV (Channel 33) and via internet accessible video stream at http://berkeley.granicus.com/MediaPlayer.php?publish_id=1244.

*Remote participation by the public is available through Zoom. To access the meeting remotely: Join from a PC, Mac, iPad, iPhone, or Android device: Please use this URL https://cityofberkeley-info.zoomgov.com/j/1618252464. To request to speak, use the "raise hand" icon by rolling over the bottom of the screen. To join by phone: Dial **1-669-254-5252 or 1-833-568-8864 (Toll Free)** and enter Meeting ID: **161 825 2464**. If you wish to comment during the public comment portion of the agenda, Press *9 and wait to be recognized by the Chair. Please be mindful that the meeting will be recorded.*

To submit a written communication for the City Council's consideration and inclusion in the public record, email council@berkeleyca.gov.

This meeting will be conducted in accordance with the Brown Act, Government Code Section 54953 and applicable Executive Orders as issued by the Governor that are currently in effect. Any member of the public may attend this meeting. Questions regarding public participation may be addressed to the City Clerk Department (510) 981-6900. The City Council may take action related to any subject listed on the Agenda.

Pursuant to the City Council Rules of Procedure and State Law, the presiding officer may remove, or cause the removal of, an individual for disrupting the meeting. Prior to removing an individual, the presiding officer shall warn the individual that their behavior is disrupting the meeting and that their failure to cease their behavior may result in their removal. The presiding officer may then remove the individual if they do not promptly cease their disruptive behavior. "Disrupting" means engaging in behavior during a meeting of a legislative body that actually disrupts, disturbs, impedes, or renders infeasible the orderly conduct of the meeting and includes, but is not limited to, a failure to comply with reasonable and lawful regulations adopted by a legislative body, or engaging in behavior that constitutes use of force or a true threat of force.

Preliminary Matters

Roll Call: 2:16 p.m.

Present: Kesarwani, Bartlett, Hahn, Lunaparra, Humbert, Arreguin

Absent: Taplin, Wengraf

Councilmember Wengraf present at 3:12 p.m.

Consent Calendar

Public Comment on Consent Calendar and Information Items Only: 4 speakers.

Action: M/S/C (Arreguin/Hahn) to adopt the Consent Calendar in one motion except as indicated.
Vote: Ayes – Kesarwani, Bartlett, Hahn, Lunaparra, Humbert, Arreguin; Noes – None; Abstain – None; Absent – Taplin, Wengraf.

Consent Calendar

1. **Elections Code Section 9212 Reports on Initiative Ordinances "Control of Infectious Aerosols in City Buildings" and "Large Buildings Fossil Fuel Emissions Tax"**
   From: Mayor Arreguin (Author)
   Recommendation: Refer to the City Manager to prepare reports under the provisions of California Elections Code Section 9212 on two proposed ordinances that will appear before Berkeley voters on the November 5 ballot: The "Control of Infectious Aerosols in City Buildings" and "Large Buildings Fossil Fuel Emissions Tax" measures. Include analysis of costs to the City and other potential costs, City staffing implications, potential economic impacts and benefits, if any, on local businesses and city tax revenues, and feasibility of implementing the proposed initiative ordinances.
   In addition, the Council welcomes any other information and analysis of potential interest to the City or the public, as determined by the City Manager and identified during the review process.
   Financial Implications: Staff time
   Contact: Jesse Arreguin, Mayor, (510) 981-7100
   Action: Approved recommendation revised to include consideration of additional factors such as the social cost of carbon, safety risks, gas use trajectory, and potential benefits for the fossil fuel tax initiative.

Action Calendar

2. Community Survey Results and Direction on Potential November 2024 Ballot Measures
From: City Manager
Recommendation: Review the results of the community survey and direct staff to prepare final language for City Council approval on July 30, 2024 for the following November 2024 revenue measures:
1. An amendment to the existing Parks Tax that results in 20% increase.
2. An amendment to the existing tax (Measure P) for general government use on transfers of real property at 2.5% of a property's value for properties valued $1.5M or higher that increases the rate from 2.5% to 3% for properties valued $3M or higher, increases the rate from 2.5% to 3.5% for properties valued $10M or higher and removes its January 1, 2029 expiration date.
3. An amendment to the existing Sugar Sweetened Beverage Product Distribution Tax that removes the current 10-year expiration date of January 1, 2027.
4. Provide direction regarding next steps and timing related to a potential new tax that would support and expand performing and cultural arts institutions and programs in Berkeley, performing arts education activities in Berkeley's public schools, culturally-diverse arts programs, festivals and street fairs, and capital projects for art spaces.
Financial Implications: None at this time
Contact: Anne Cardwell, City Manager's Office, (510) 981-7000; Scott Ferris, Parks, Recreation and Waterfront, (510) 981-6700
Action: 5 speakers. M/S/C (Hahn/Arreguin) to direct staff to prepare ballot measure materials for the November 2024 election as follows.

- Parks Maintenance Tax increase at the 20% level.
- Measure P renewal with added tiers, "top one-third" provisions, and remove the expiration clause.
- Sugar-Sweetened Beverage Tax extension that removes the expiration clause.
- Revenue Measure for Arts Support and Programs – authorize Mayor Arreguin to work with staff and Lake Research on questions for a survey; begin drafting the measure with possible funding mechanisms of 2% TOT increase, maximum allowable sales tax increase, and 4-cents per square foot parcel tax; return to Council for consideration of the options and the polling results.

Vote: Ayes – Kesarwani, Bartlett, Hahn, Wengraf, Lunaparra, Humbert, Arreguin; Noes – None; Abstain – None; Absent – Taplin.

Adjournment

Action: M/S/C (Arreguin/Bartlett) to adjourn the meeting.
Vote: Ayes – Kesarwani, Bartlett, Hahn, Wengraf, Lunaparra, Humbert, Arreguin; Noes – None; Abstain – None; Absent – Taplin.

Adjourned at 5:10 p.m.

Supplemental Communications and Reports 1

- None

Supplemental Communications and Reports 1

- None

Supplemental Communications and Reports 2

- None

Supplemental Communications and Reports 3

Item #1: Elections Code Section 9212 Reports on Initiative Ordinances "Control of Infectious Aerosols in City Buildings" and "Large Buildings Fossil Fuel Emissions Tax"

1. Laura X
2. Phoebe Thomas
3. Janice Schroeder
4. Daniel Tahara
5. Brianna McGuire
6. 6 similarly-worded form letters

Item #2: Community Survey Results and Direction on Potential November 2024 Ballot Measures

7. Presentation, submitted by City Manager's Office
8. Kiran Shenoy(2)
9. Carole Marasovic
10. Barbara Gilbert